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Class Action Lawsuit Alleges JetBlue Secretly Tracks Traveler Data for Dynamic Ticket Pricing

ClassAction.org

by **Olivia DeRicco**

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Phillips v. JetBlue Airways Corporation

FILED: APRIL 22, 2026 ◆ § 1:26-CV-02409

- Read Complaint

A class action lawsuit alleges JetBlue secretly tracks and collects consumer data for 'dynamic surveillance pricing' purposes.

DEFENDANT(S)	LAW(S)	STATE(S)
JetBlue Airways Corporation	• Electronic Communications Privacy Act of 1986	New York

CATEGORIES

- Travel
- Privacy
- False Advertising
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JetBlue faces a proposed class action lawsuit that alleges the airline does not disclose its use of online tracking technology to gather travelers' data for the purpose of using the information to set ticket prices, a practice called "dynamic surveillance pricing."

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The 45-page lawsuit claims that JetBlue Airways, rather than protect consumers' data, employs tracking tools on its website to collect, retain and use travelers' information without consent. According to the case, JetBlue fails to disclose not only that the online trackers are used to set ticket pricing (for instance, when a consumer looks for tickets, closes the window, and later comes back), but that the trackers are used for behavioral analytics that also allow the airline to set prices dynamically, as opposed to setting static ticket prices.

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JetBlue also fails to disclose that it shares consumer data with third parties for the purpose of setting prices, the suit alleges.

The class action lawsuit argues that JetBlue effectively admitted in a since-deleted social media post in April 2026 that it uses so-called dynamic surveillance pricing. After a consumer complained about a $230 increase in ticket prices, the case says, the company recommended on X, formerly known as Twitter, that they "[t]ry clearing your cache and cookies or booking with an incognito window," suggesting that consumer activity on JetBlue's website is "closely" monitored.

"Sharing information with third parties and allowing them to secretly collect this information makes this possible," the filing states.

The lawsuit says that travelers looking to buy tickets online have a reasonable expectation of privacy because of the sensitive nature of the information they must share. The suit stresses that consumers must

provide a “significant” amount of personal data to buy plane tickets and should “have the very same privacy rights as those who physically walk up to an airline ticketing counter.”

Although JetBlue has since denied that its website uses dynamic surveillance pricing, the case says that other public statements, the de facto social media admission, and even the website’s back-end code “say otherwise.”

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“Consumers should not have to have their privacy rights violated to participate in Defendant’s digital rat race for airline tickets which should cost the same for each similarly seated passenger,” the complaint scathes.

The lawsuit says that JetBlue seems to understand the “critical” nature of protecting traveler information but “immediately contradicts itself” by noting in its privacy policy that aspects of the airline’s website will not function properly unless a consumer accepts all cookies and tracking technologies.

Traveler information input into the JetBlue website is transmitted to two third-party companies, PROS Holdings, Inc. and FullStory, Inc., which collect and analyze consumers’ behavioral information, with PROS using an algorithm to set prices based on consumer behavior, the case claims. This creates a problem, given that consumer information is “commonly weaponized” by companies as a surreptitious way to ascertain someone’s socioeconomic status and geographic location, the suit says. With this much information, a company can adjust prices based on a consumer’s zip code or presumed socioeconomic class, the lawsuit relays.

The case contends that dynamic surveillance pricing is “highly concerning” in that JetBlue uses the trackers to “make as much money as they can” from airline tickets that are priced differently for different consumers while “blatantly” invading their privacy rights. While surveillance pricing is not illegal, “secretly” collecting consumer data without consent is, the case argues.

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The plaintiff and proposed class members “[d]id not anticipate, invite, or adequately consent to the presence of other third-party corporations looking over their digital shoulders as they transact business with [JetBlue],” the lawsuit claims.

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The JetBlue dynamic pricing class action lawsuit looks to cover all natural individuals in the United States who used JetBlue’s website and/or mobile application and whose communications and/or data were shared with third parties during the applicable statutory period.

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Olivia works primarily on ClassAction.org's newswire, reporting on cases as they happen.

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